

[3 EDW. 7.] *Lancashire and Yorkshire and London* [Ch. cxcvii.]
and North Western Railway Companies (Steam Vessels)
Act, 1903.



CHAPTER cxcvii.

An Act to extend and enlarge the powers of the Lancashire and Yorkshire Railway Company and the London and North Western Railway Company as to steam vessels and for other purposes. A.D. 1903.
[11th August 1903.]

WHEREAS by the Lancashire and Yorkshire and London and North Western Railway Companies (Steam Vessels) Act 1870 (in this Act referred to as “the Act of 1870”) and the Lancashire and Yorkshire and London and North Western Railway Companies (Steam Vessels) Act 1892 (in this Act referred to as “the Act of 1892”) the Lancashire and Yorkshire Railway Company and the London and North Western Railway Company (in this Act called “the Two Companies”) were as joint owners of the Preston and Wyre Railway Harbour and Dock Undertaking empowered to work use and maintain steam and other vessels and thereby convey and carry passengers animals minerals merchandise and goods between Fleetwood in Lancashire Belfast in Ireland and the Isle of Man and it would be of advantage to the public as well as to the Two Companies if the provisions of the Acts of 1870 and 1892 were extended and enlarged as hereinafter provided :

And whereas it is expedient that the Two Companies should respectively be authorised to apply their funds to the purposes of this Act and that the Lancashire and Yorkshire Railway Company should be empowered to raise additional capital for those purposes :

And whereas the objects of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King’s most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal

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A.D. 1903. — and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title. **1.** This Act may be cited for all purposes as the Lancashire and Yorkshire and London and North Western Railway Companies (Steam Vessels) Act 1903.

Incorporation of Part IV. of Railways Clauses Act 1863. **2.** Part IV. (relating to steam vessels) of the Railways Clauses Act 1863 is except where expressly varied by this Act incorporated with and forms part of this Act and in construing the same for the purposes of this Act the Company means the Two Companies as defined by this Act.

Interpretation. **3.** In this Act the several words and expressions to which meanings are assigned by the Act partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction :

The expression “the Lancashire and Yorkshire Company” means the Lancashire and Yorkshire Railway Company ;

The expression “the North Western Company” means the London and North Western Railway Company ;

The expression “the authorised steamers” means and includes all the steam and other vessels from time to time plying between the several places in this Act mentioned in that behalf belonging to or used or worked by the Two Companies under the authority of this Act.

Power to provide and work and subscribe to wards steam vessels. **4.** In addition to the powers conferred upon the Two Companies by the Act of 1870 and the Act of 1892 the Two Companies may purchase hire build and provide and subscribe towards the purchasing hiring building and providing of steam and other vessels of every or any description and may maintain hold work and use and subscribe towards the maintaining working and using the same and may ther in and thereby convey and carry between Fleetwood in Lancashire and Londonderry in Ireland passengers animals minerals merchandise and goods of every description and may do all acts that may be necessary to enable them to carry fully into effect the purposes aforesaid :

Provided that the sailings of the Two Companies shall be limited to Tuesdays Wednesdays and Fridays from Londonderry but in the event of the Glasgow Dublin and Londonderry Steam Packet Company Limited or the Midland Railway Company under the powers conferred upon them by the Midland Railway (Steam Vessels) Act 1902 subsequently increasing the sailings between

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Londonderry and Morecambe or Heysham the before-mentioned limitation on the sailings of the Two Companies shall cease. A.D. 1903.

5. The Two Companies may ask demand and recover for the conveyance of passengers animals minerals goods merchandise and other things in the steam and other vessels so provided by them such reasonable rates or sums as they shall think fit not exceeding the rates or sums which the Lancashire and Yorkshire Company are authorised to take for the conveyance upon their railway of passengers animals minerals goods merchandise and other things and for the purpose of calculating such rates or sums the distance between Fleetwood and Londonderry shall be deemed to be two hundred and fourteen miles Provided always that it shall be lawful for every passenger conveyed by any steam or other vessel of the Two Companies to take with him without extra charge his ordinary luggage not exceeding in the case of a first class passenger one hundred and twelve pounds in weight and not exceeding in the case of a second class passenger one hundred pounds in weight and not exceeding in the case of a third class passenger sixty pounds in weight.

Tolls for use of steam vessels for passengers &c.

6. The Two Companies may delegate to any joint committee for the time being empowered to exercise the powers of the Lancashire and Yorkshire and London and North Western Railway Companies (Preston and Wyre Harbour and Dock) Act 1849 such of the powers by this Act conferred upon them jointly as they think fit and such joint committee shall have and may exercise the powers so from time to time delegated to them in like manner as the same powers are possessed and may be exercised by the Two Companies.

Joint powers of Act may be delegated to joint committee.

7. The Two Companies are hereby empowered from time to time to enter into any contract or agreement with each other in relation to the authorised steamers or their respective interests therein and for the working use and management thereof and of the traffic passing in or upon the same and as to any other matter or thing connected therewith but so that no such contract or agreement shall be inconsistent with the provisions of this Act or prejudice or affect any person or company not parties to any such contract or agreement.

Two Companies may make agreements with respect to authorised steamers.

8. The Two Companies may for the purposes of this Act and of the undertaking by this Act authorised acquire by agreement or take on lease and hold lands in the ports of Fleetwood

Power to acquire lands by agreement.

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A.D. 1903. — Belfast and Londonderry respectively not exceeding ten acres but nothing in this Act shall exempt the Two Companies or either of them from any action or indictment for nuisance in the event of any nuisance being caused or permitted by them on any lands so acquired or taken on lease.

Restriction
on taking
houses of
labouring
class.

9.—(1) The Two Companies shall not under the powers of this Act purchase or acquire in any borough or other urban district and elsewhere than in a borough or other urban district in any parish ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

(2) If the Two Companies acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom. Provided that the court may if it think fit reduce such penalty.

(3) For the purposes of this section the expression “house” means any house or part of a house occupied as a separate dwelling and the expression “labouring class” includes mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

Two Com-
panies may
provide
wharves &c.

10. The Two Companies may on any lands for the time being belonging or leased to the Two Companies at the said ports or places construct maintain and use quays landing places wharves warehouses and stores for the purposes of this Act and for carrying on the business of the Two Companies at the said ports or places.

Charges for
use of build-
ings &c.

11. The Two Companies may make reasonable charges for or in respect of the use of any wharves warehouses buildings yards cranes weighbridges or other works machinery appliances or conveniences upon adjacent to or connected with the wharves and

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for the use of any lands of the Two Companies held or occupied in connection therewith. A.D. 1903.

12. Nothing in this Act affects prejudicially any right power interest or privilege of the Crown and in particular all officers and persons belonging to or employed in the Naval Service of His Majesty while in the execution of their duty their baggage and all naval stores shall at all times have free ingress passage and egress into or along through and out of the quays landing places or wharves situate below high-water mark and constructed or maintained under this Act without payment and without being subject to any control. Saving for naval officers &c.

13. Nothing in this Act contained shall be deemed to authorise the construction of any quay landing place or other work in contravention of the provisions of section 54 of the Londonderry Port and Harbour Act 1854 or extend to prejudice alter diminish take away or affect any of the rights privileges powers jurisdiction or authority vested in or enjoyed by the Londonderry Port and Harbour Commissioners under or by virtue of the Londonderry Port and Harbour Acts of 1854 1874 and 1882. For protection of Londonderry Harbour Commissioners

14. The Lancashire and Yorkshire Company may apply to the purposes of this Act to which capital is properly applicable any of the moneys which they now have in their hands or which they have power to raise by virtue of any Acts relating to that Company and which may not be required for the purposes to which they are by any such Acts made specially applicable. Power to Lancashire and Yorkshire Company to apply funds.

15. The Lancashire and Yorkshire Company from time to time may for the purposes of this Act and for the general purposes of their undertaking raise by the creation and issue of shares or stock such additional capital as they shall think necessary not exceeding one hundred and fifty thousand pounds exclusive of the moneys which they are or may be authorised to raise by any other Act or Acts of Parliament and the Company may create and issue such shares or stock either wholly or partly as preference shares or stock and the clauses and provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (that is to say) :—

- The distribution of the capital of the company into shares ;
- The transfer or transmission of shares ;
- The payment of subscriptions and the means of enforcing the payment of calls ;

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The forfeiture of shares for non-payment of calls and the merger and re-issue of forfeited shares ;
The remedies of the creditors of the company against the shareholders ;
The borrowing of money by the company on mortgage or bond ;
The conversion of the borrowed money into capital ;
The consolidation of the shares into stock ;
The making of dividends ;
The giving of notices ; and
The provision to be made for affording access to the special Act by all parties interested ;

and Part I. (relating to cancellation and surrender of shares) Part II. (relating to additional capital) and Part III. (relating to debenture stock) of the Companies Clauses Act 1863 as amended by subsequent Acts are (except where expressly varied by this Act) incorporated with and form part of this Act and shall extend and apply to the Lancashire and Yorkshire Company and to the additional capital which they are by this Act authorised to raise.

Shares not to be issued until one fifth part thereof shall have been paid up.

16. The Lancashire and Yorkshire Company shall not issue any share created under the authority of this Act of less nominal value than ten pounds nor shall any such share vest in the person accepting the same unless and until a sum not being less than one fifth of the amount of such share shall have been paid in respect thereof.

Qualifications of new shares or stock.

17. Except as by or under the powers of this Act otherwise provided the new ordinary shares or stock issued under the powers of this Act shall in proportion to the aggregate amount thereof from time to time held by the same person at the same time entitle the respective holders thereof to the same dividends and profits and confer on them the like qualifications and the like right of voting as the like amount of existing ordinary shares or stock of the Lancashire and Yorkshire Company.

Power to raise capital under any other Act and this Act by new shares or stock of one class.

18. Subject to the provisions of any Act already passed by which the Lancashire and Yorkshire Company are authorised to raise capital by new shares or stock and to the provisions of this Act and any other Act passed in the present session of Parliament whether before or after the passing of this Act by which the Lancashire and Yorkshire Company may be authorised to raise capital by new shares or stock the Lancashire and Yorkshire Company if they think fit may raise by the creation and issue of

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new shares or stock of one and the same class all or any part of the aggregate capital which they are by such other Act and this Act respectively authorised to raise by the creation and issue of new shares or stock. A.D. 1903.

19. The Lancashire and Yorkshire Company may in respect of the additional capital of one hundred and fifty thousand pounds which they are by this Act authorised to raise from time to time borrow on mortgage of their undertaking any sum not exceeding in the whole fifty thousand pounds but no part thereof shall be borrowed until shares for so much of the additional capital as is to be raised by means of shares are issued and accepted and one half of such capital is paid up and the Lancashire and Yorkshire Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that shares for the whole of such additional capital have been issued and accepted and that one half thereof has been paid up and that not less than one fifth part of the amount of each separate share in such capital has been paid on account thereof before or at the time of the issue or acceptance thereof and until stock for one half of so much of the said additional capital as is to be raised by means of stock is fully paid up and the Lancashire and Yorkshire Company have proved to such justice as aforesaid before he so certifies that such shares or stock as the case may be were issued and accepted and paid up bonâ fide and are held by the persons to whom the same were issued or their executors administrators successors or assigns and also so far as the said capital is raised by shares that such persons or their executors administrators successors or assigns are legally liable for the same and upon production to such justice of the books of the Lancashire and Yorkshire Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof. Power to borrow on mortgage.

20. The mortgages and bonds granted by the Lancashire and Yorkshire Company in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the time of the passing of this Act shall during the continuance of such mortgages and bonds but subject to the provisions of the Acts under which such mortgages and bonds were respectively granted have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Lancashire and Yorkshire Company. Former mortgages to have priority.

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Debenture
stock.

21. The Lancashire and Yorkshire Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 but notwithstanding anything therein contained the interest of all debenture stock at any time after the passing of this Act created and issued by the Lancashire and Yorkshire Company shall rank *pari passu* with the interest of all mortgages at any time after the passing of this Act granted by that Company and shall have priority over all principal moneys secured by such mortgages.

Application
of moneys.

22. All moneys raised by the Lancashire and Yorkshire Company under this Act whether by shares stock debenture stock or borrowing shall be applied for the purposes of this Act and for the general purposes of the Lancashire and Yorkshire Company being in each case purposes to which capital is properly applicable.

Receipt in
case of per-
sons not *sui*
juris.

23. If any money is payable to a holder of stock in or of a mortgage or debenture stock of the Lancashire and Yorkshire Company being a minor idiot or lunatic the receipt of the guardian or committee of his estate shall be a sufficient discharge to the Lancashire and Yorkshire Company.

Interest not
to be paid on
calls paid up.

24. No interest or dividend shall be paid out of any share or loan capital which the Lancashire and Yorkshire Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Lancashire and Yorkshire Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

Deposits for
future Bills
not to be
paid out of
capital.

25. The Lancashire and Yorkshire Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Lancashire and Yorkshire Company to construct any other railway or to execute any other work or undertaking.

Power to
North West-
ern Company
to apply cor-
porate funds
to purposes
of Act.

26. The North Western Company may apply to any of the purposes of this Act to which capital is properly applicable any of the moneys which they now have in their hands or which they have power to raise by shares stock debenture stock or mortgage by virtue of any Act relating to that Company already passed or to be passed in the present session of Parliament and which may not be

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required for the purposes to which such moneys are by any such A.D. 1903.
Act made specially applicable. —

27. Nothing herein contained shall be deemed or construed Provision as
to exempt the respective railways of the Two Companies from the to general
provisions of any general Act relating to railways or the better and Railway
more impartial audit of the accounts of railway companies now in Acts.
force or which may hereafter pass during this or any future session
of Parliament or from any future revision or alteration under the
authority of Parliament of the maximum rates of fares and charges
or of the rates for small parcels authorised by the Acts relating to
those railways respectively.

28. All costs charges and expenses of and incident to the Costs of Act.
preparing for obtaining and passing of this Act or otherwise in
relation thereto shall be paid by the Two Companies in the
proportions in which they hold the Preston and Wyre Railway
Harbour and Dock Undertaking.

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